

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.208	0.218	0.019	0.335	0.183
Trial Fee-Shifting	0.176	0.165	0.018	0.278	0.124
Complete Fee-Shifting	0.198	0.196	0.016	0.314	0.165